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Talking to Your Employer: A Disclosure Decision Guide

Whether, when, and how to tell an employer about your case.

One of the most stressful decisions after a case is whether to tell an employer, current or prospective, and if so how and when. There is no single right answer; it depends on your job, your state, the timing, and what a background check will show anyway. This guide helps you think it through clearly instead of deciding from fear.

Employment and disclosure rules vary by state, industry, and licensing body. This is general guidance, not legal advice. For a licensed profession, check your board's specific rules.

First, gather the facts that decide it

- ☐ Will a background check for this job show it anyway? Usually assume yes for anything on your record.
- ☐ Does the application or the law actually require you to disclose, and at what stage?
- ☐ Does your profession or license have its own mandatory reporting rules?
- ☐ Is this a current employer who will find out another way if you stay silent?

The case for telling, and telling early

- If a check will reveal it, hearing it from you first is almost always better than them discovering it.
- Controlling the framing lets you take responsibility and point forward, rather than looking like you hid something.
- For a current job you want to keep, honesty before discovery protects trust.

The case for waiting or saying less

- If the law or the application does not require it yet (ban-the-box), you may not need to raise it until later in hiring.
- You are allowed to keep it brief and to not volunteer detail that is not asked for or relevant.
- If a record is sealed or expunged, in many states you can lawfully answer that you have no such conviction; confirm your state's rule.

If you decide to tell, do it well

- Choose the moment: often after they see your value but before a formal check, unless the law sets the timing.
- Keep it short, take responsibility, and pivot to who you are now and the work ahead.
- Practice it until it is calm and brief. Steadiness reassures more than any explanation.

Think it through here

What a background check will likely show:

My decision (tell / wait / say less), and why:

This workbook is educational and reflects lived and professional experience. It is not legal advice and does not create an attorney-client relationship. Laws and procedures vary by jurisdiction and change over time. For advice about your situation, consult a licensed attorney in your state.

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